

STANDARD OPERATING PROCEDURE
ELI LILLY AND COMPANY
North American Logistics Operations

Regulatory Product Sampling in US Finished Goods Distribution

USD-SOP-FDA Product Sampling-001

SUPERSEDES	001-004545, 001-001974-002, and Lilly Procedure 017001-004
-------------------	--

PURPOSE	To provide a process to follow when a regulatory agency requires samples from US Finished Goods Distribution. This includes escorting the agency, obtaining the sample, providing duplicate samples for examination and testing by Lilly, if applicable, and preparing the summary report for the event when the agency visits to conduct the sampling.
----------------	---

AREAS INVOLVED	North American Logistics Operations (NALO) Operations, NALO Quality Assurance
-----------------------	---

APPROVALS	Approval of this procedure requires the signature of: Management, NALO Operations Management, NALO Quality Assurance
------------------	--

REFERENCES	USD-SOP-Stock Withdrawal-001 USD-SOP-Regulatory Interactions-001 Global Records Retention Schedule *CS-SOP13892, Handling and Completion of DEA Form 222s by Purchasers and Suppliers (US) Lilly Quality Standard 112, Regulatory Authority Communications and Inspections Global Quality Standard 101, Quality Management LQP-101-1, Notification to Management (NTM)
-------------------	--

REASONS FOR REVISION	To replace reference to SSS Procedure 13893, Handling and Completion of DEA Form 222 for Suppliers (United States) with CS-SOP13892, Handling and Completion of DEA Form 222s by Purchasers and Suppliers (US). • Rationale: SSS Procedure 13893 was retired with relevant content moved to CS-SOP13892.
-----------------------------	--

INTRODUCTION Depending upon the type of the sampling event, NALO Operations and NALO Quality Assurance may only play small roles when a regulatory agency samples product. If the sampling is of product that is already in commerce, the Sampling Event is owned by IDM, IDAP or EMSA, as appropriate. If the sampling is of product that has not yet been released by the FDA for commerce (such as product from Fegersheim or Sesto), the process is owned by NALO QA.

TABLE OF CONTENTS The table below lists the topics in this procedure.

Topic	Page
If the Sampling is of Product Already in Commerce	3
Roles and Responsibilities	3
Preparation for the Sampling Event	3
Information Supplied by the Regulatory Agency	4
Establishing How and Where the Regulatory Agency Samples	5
Review of Sample Availability and Copies of Methods	5
Conducting the Sampling Event	6
Additional Guidelines	8
Sample Analysis	8
If the Sampling is of Product That Has Not Yet Been Released by the FDA for Commerce	9
Roles and Responsibilities	9
Preparation for the Sampling Event	9
Conducting the Sampling Event	10
Documentation of the Sampling Event	11
Record Retention	11

If the Sampling is of Product Already in Commerce**ROLES AND RESPONSIBILITIES**

The following table describes roles and responsibilities outlined in this procedure.

Role	Responsibility
NALO Quality Assurance	- NALO QA (a QA representative at PDC and Enfield, or the designated representative at Fresno) is contacted by Site Quality Assurance (SQA) for the appropriate plant (IDM, IDAP or EMSA) to ascertain the availability of the requested product. - Ensures that adequate samples exist for what the regulatory agency has requested plus duplicate samples for Lilly analysis or retention. NALO QA does this for the Plainfield Distribution Center by running the MB52 Report from SAP for each product Item Code requested. Regional QA or their designated representative will do this for the Regional Distribution Centers.
NALO Operations	- Responsible for escorting the regulatory agency inspector at all times during his/her visit to the warehouse. - Responsible for pulling the samples along with the NALO QA Representative or their designated representative at the Regional distribution centers.

PREPARATION FOR THE SAMPLING EVENT

Preparation for the Sampling Event is dependent on advance notification:

Step	Action								
1	<table><tr><td colspan="2">Determine:</td></tr><tr><th>If</th><th>Then</th></tr><tr><td>Advance notice is given,</td><td>Go to the Information Supplied by the Regulatory Agency section of this procedure.</td></tr><tr><td>No advance notice is given,</td><td> Upon regulatory agency investigator(s) arrival, NALO QA or a designated representative at Enfield or Fresno will: - Request credentials - Record information from credentials - Request nature of business on site - Request and review the FDA Form 482 or other Sample Request paperwork, as applicable. - Document the above in accordance with USD-SOP-Regulatory Interactions-001. </td></tr></table>	Determine:		If	Then	Advance notice is given,	Go to the Information Supplied by the Regulatory Agency section of this procedure.	No advance notice is given,	Upon regulatory agency investigator(s) arrival, NALO QA or a designated representative at Enfield or Fresno will: - Request credentials - Record information from credentials - Request nature of business on site - Request and review the FDA Form 482 or other Sample Request paperwork, as applicable. - Document the above in accordance with USD-SOP-Regulatory Interactions-001.
Determine:									
If	Then								
Advance notice is given,	Go to the Information Supplied by the Regulatory Agency section of this procedure.								
No advance notice is given,	Upon regulatory agency investigator(s) arrival, NALO QA or a designated representative at Enfield or Fresno will: - Request credentials - Record information from credentials - Request nature of business on site - Request and review the FDA Form 482 or other Sample Request paperwork, as applicable. - Document the above in accordance with USD-SOP-Regulatory Interactions-001.								
2	Notify Management in accordance with LQP-101-1, Notification to Management (NTM).								

**INFORMATION
SUPPLIED BY
THE
REGULATORY
AGENCY**

When advance notification is received by (a) Corporate or Site Quality Assurance (SQA) for the appropriate plant or (b) the Regional US Finished Goods Distribution Center, of the upcoming sampling event from the regulatory agency, the following information may be supplied by the regulatory agency during this notification:

- Date of visit
- Names of the regulatory agency investigators / inspectors to be involved
- Reason for the sampling event
- Items and/or Lot Numbers of product to be sampled, and quantity of sample(s) requested

Note: If one of the Regional US Finished Goods Distribution Centers is the recipient of the advance notification, they must immediately inform the SQA Representative for the appropriate plant (IDM, IDAP, or EMSA). The SQA then communicates the information to the proper personnel.

**ESTABLISHING
HOW AND
WHERE THE
REGULATORY
AGENCY
SAMPLES**

1. SQA from the appropriate plant establishes how and where the regulatory agency will sample.
Note: Information on the Item Code and/or batch, the quantity of samples requested as well as the reason for the sampling is used to determine the source of the samples.
 2. SQA from the appropriate plant contacts NALO QA to determine availability of product. NALO QA runs the MB52 report from SAP for each item code requested. This is completed by the Plainfield QA representative for Plainfield and the Regional QA representative or their designated representative for Enfield and Fresno.
 3. Regulatory agency plus Lilly duplicate samples are taken from the Distribution Center. Samples are taken from approved material that is in commerce.
 4. If the material is not available in the Distribution Center, SQA of the appropriate plant informs the regulatory agency. If it is determined that samples MUST be supplied, they may be pulled from the House Samples area. For drug products, refer to the "Review of Sample Availability and Copies of Methods" section of this procedure, following review with the Global Quality Leader for the Lilly Technical Center.
 5. Samples must be fully finished (i.e., labeled and packaged as they are for the market) for finished products. Nude vials/bottles must never be supplied.
-

**REVIEW OF
SAMPLE
AVAILABILITY
AND COPIES
OF METHODS**

1. SQA from appropriate plant is responsible for reviewing the availability of the samples (i.e.: ensure that adequate samples exist to allot both what the regulatory agency has requested, plus duplicate samples for Lilly analysis or retention).

Note: The decision to analyze duplicate samples must be made by the Global Quality Leader (or equivalent).
 2. The quantity needed is based on potential testing and the quantity of product required for completion of that testing. Manufacturing QA determines the appropriate quantity based on the proposed testing. Manufacturing QA also prepares copies of the Analytical Methods typically requested by the regulatory agency for Non-Compendial testing/methods.
 3. NALO QA is contacted or designated representative at Enfield and Fresno to determine the availability of the product. If there is not sufficient quantity in the Distribution Center and samples **MUST** be pulled, they may be pulled from the House sample area, in which case the SQA is responsible for the samples.
 4. If the regulatory agency has requested to observe the sampling, and there is a sufficient quantity of product in the Distribution Center, the SQA informs NALO QA or designated representative at Enfield and Fresno. **Samples must not be pulled in advance in these cases.**
-

**CONDUCTING
THE SAMPLING
EVENT**

SQA, NALO QA, and NALO center personnel will:

1. Meet with regulatory agency investigators upon their arrival, and be present with the regulatory agency investigators at all times.
2. Review the regulatory agency investigators' credentials and Notice of Inspection (i.e., FDA Form 482) or other Sample Request Paperwork.

Note: The FDA Notice of Inspection (FDA Form 482) indicates that the reason for the inspection is to sample Lilly products.

3. Supply the regulatory agency with the samples requested or escort the regulatory agency to the area from which the samples will be pulled.

Note: Under no circumstances may the regulatory agency personnel perform product sampling. Only authorized Lilly personnel with appropriate Personal Protective Equipment, if applicable, may pull these samples.

4. When the sampling event is to take place, an individual from both NALO Operations and NALO QA is present during the sampling event at the Plainfield Distribution Center. In Enfield and Fresno, at least two (2) Operators (one Operator and one Supervision; or one Operator and one QA) must be present. Ensure that Operations or QA has a printout of the locations of the requested product.
5. NALO Operations personnel retrieves the pallet(s), opens the case(s) and removes the product, making sure to pull duplicate samples for the Lilly lab. NALO QA or other designated individual in Enfield or Fresno ensures that all cases from which non-serialized product is pulled are refilled so that only one partial case remains. The partial case is marked "partial" and the correct quantity noted on the case label with initials and date. For serialized product, NALO QA or other designated individual in Enfield or Fresno records the serial numbers for Serialized product on the stock withdrawal forms. Partial cases of serialized product are not refilled. All partial cases are marked "partial", and the correct quantities noted on the case labels with initials and date. Each opened case is taped closed by Supervision, QA or Operations, and initialed and dated.

Note: It is imperative that any time serialized product inventory is adjusted that the corresponding serial number system (ATTP) is adjusted as well. Contact the Inventory Specialist and use transaction ZS518, Serial Number Management.

Continued on next page

**CONDUCTING
THE
SAMPLING
EVENT,
CONTINUED**

6. Ensure the regulatory agency samples are in original, approved container/closure systems for final product, with tamper evident features and appropriate labeling in place. Any exception to this must be approved. Contact site quality management who escalates, as appropriate.
7. Ensure the samples, once in the regulatory agency possession, are stored according to label requirements. Ensure that the duplicate samples are also stored according to label requirements.
8. Pack product for transport to the agency or Lilly laboratory according to local shipping procedures.
9. NALO QA or other designated individual at Enfield or Fresno ensures for each product sampled that the following are supplied to the regulatory agency with the samples:
 - A copy of the Material Safety Data Sheet
 - The cost per unit (determined by the NALO Customer Services Account Representative), and
 - Copies of the analytical methods for non-compendia testing/methods (from the plant).
10. North American Shared Service Center - Customer Service (NASSC-CS) enters orders into SAP in accordance with USD-SOP-Stock Withdrawal-001 and ensures that the correct cost center is charged for the product provided to the regulatory agency. NASSC-CS includes the serial numbers of Serialized product in the orders.

Note: Two copies of Attachment A, Finished Product Request Form from procedure USD-SOP-Stock Withdrawal-001 must be completed for each individual item to be sampled. One copy is for product that is provided to the regulatory agency, the other copy is for duplicate samples pulled for the Lilly lab. Ensure that the unit cost and the serial numbers, if applicable, are noted on each form.
11. A sample receipt must be prepared and provided to regulatory authorities upon completion of product sampling. The receipt should indicate the following:
 - Time
 - Date
 - Location
 - Item code, title and batch number
 - Amount of sample, and
 - Any other pertinent information

Note: NALO personnel must not sign any additional paperwork or reports beyond the sample receipt. The Receipt for Samples, FDA Form 484, may be used for this purpose, if applicable.

**ADDITIONAL
GUIDELINES**

1. The regulatory agency does not have the authority to:
 - a. Sample items specified by the DEA as controlled substances. The regulatory agency must have a DEA representative (for DEA-regulated controlled substances) and Sample Request paperwork with them for this to occur, or,
 - b. Take photographs during the sampling event. If the inspector insists on taking photographs, duplicate photographs must be taken by a Lilly representative for company use. If the inspector insists on the use of a video camera or tape recorder, contact the responsible Global Quality Leader or Corporate Legal for advice before proceeding.
2. Duplicate samples to those taken for the regulatory agency must be obtained. Samples and subsequent analytical testing are based upon the following:
 - a. Duplicate samples (identical samples to those pulled for the regulatory agency: same quantity, same location, same number) are always pulled from the same lots sampled by the regulatory agency at the same time the regulatory agency samples are pulled.
 - b. Samples must be stored according to product label conditions prior to shipment to the lab for testing.

Note: It is the responsibility of the SQA to notify the Manufacturing or Materials Center QA personnel responsible for the item(s) sampled that the samples have been pulled and are awaiting shipment to storage or testing. If the Sampling Event has taken place at the Regional Distribution Center, Quality Assurance for the appropriate plant must be consulted.
3. For items specified by the DEA as controlled substances, follow *CS-SOP13892 and USD-SOP-Stock Withdrawal-001 for withdrawal and documentation requirements.

**SAMPLE
ANALYSIS**

The decision to analyze the sample must be made by the global quality leader
Duplicate samples are to be packaged and stored under conditions appropriate for the type of sample retained.

If the Sampling is of Product That Has Not Yet Been Released by the FDA for Commerce

(This type of sampling event is owned by NALO QA)

Note: The regulatory agency does not have the authority to sample items specified by the DEA as controlled substances. The regulatory agency must have a DEA representative (for DEA-regulated controlled substances) and Sample Request paperwork with them for this to occur.

ROLES AND RESPONSIBILITIES

Role	Responsibility
NALO Quality Assurance (Plainfield and Enfield Only)	- Ensures all pallets received on the Air Way Bills (AWB) requested by the FDA are on the floor and grouped together by item and batch. - Makes copies of the corresponding TempTale files, if appropriate. - Documents the sampling event - Adds or ensures that the sampling event is added to the Trackwise Audit Module
NALO Operations (Plainfield and Enfield Only)	- Groups the product requested on the floor by item and batch. - Escorts the regulatory agency inspector at all times during his/her visit to the warehouse. - Pulls the samples along with the NALO QA Representative or other designated NALO Operations personnel if QA is not on site.

PREPARATION FOR THE SAMPLING EVENT

Preparation for the Sampling Event is dependent on advance notification:

Step	Action
1	Prior to the arrival of the regulatory agency investigator(s), NALO QA Management notifies management in accordance with LQP-101-1, Notification to Management (NTM).
2	Prior to the arrival of the regulatory agency investigator(s), NALO Operations groups the product requested on the floor by item and batch number. (The FDA will request this by asking for a particular AirWay Bill number/corresponding import entry number that has been recently received).
3	NALO QA or other Operations personnel second person verifies that all product requested is grouped by item and batch.
4	Upon regulatory agency investigator(s) arrival, NALO QA or NALO Operations personnel will: - Request credentials - Record information from credentials - Request nature of business on site - Request and review the FDA Form 482, or other Sample Request paperwork as applicable. - Document the above in accordance with USD-SOP-Regulatory Interactions-001.

**CONDUCTING
THE SAMPLING
EVENT**

NALO QA, and NALO Enfield or Plainfield Distribution Center personnel will:

1. Meet with regulatory agency investigators upon their arrival, and be present with the regulatory agency investigators at all times.
 2. Review the regulatory agency investigators' credentials and Notice of Inspection (i.e. FDA Form 482 or other Sample Request paperwork, as applicable).
 3. Escort the regulatory agency to the area from which the samples will be pulled.
Note: Under no circumstances may the regulatory agency personnel perform product sampling. Only authorized Lilly personnel with appropriate Personal Protective Equipment, if applicable, may pull these samples.
 4. An individual from both NALO Operations and NALO QA must be present during the sampling event. If NALO QA is not on site, 2 personnel from Operations must be present during the sampling event.
 5. NALO Operations or QA personnel opens the case(s) and removes the product. NALO QA or other designated Operations personnel ensures that all cases from which non-serialized product is pulled are refilled so that only one partial case remains. If product is serialized, do not refill partial cases and record the serial numbers of the sampled product so that when the inventory is downgraded, the serial numbers may be downgraded as well. The partial cases are marked "partial", and the correct quantity noted on the case label with initials and date. Each opened case is taped closed by NALO QA or other designated Operations personnel with tape, initialed and dated.
 6. Ensure the regulatory agency samples are in original, approved container/closure systems for final product, with tamper evident features and appropriate labeling in place. Any exception to this must be approved. Contact site quality management who escalates, as appropriate.
 7. A sample receipt must be prepared and provided to the regulatory agency which indicates time/date sample was collected, location, item code/batch number of the material, amount of sample and any other pertinent information.
 8. Ensure the samples, once in the regulatory agency possession, are stored according to label requirements, if applicable. Ensure that any copies of package inserts, case labels, TempTale files or product labeling are supplied to the regulatory agency, as appropriate.
 9. If appropriate, ensure that the product is packed for transport to the agency according to local shipping procedures.
 10. NALO Operations or QA downgrades the inventory of the item/batch sampled. Contact the Inventory Specialist to use transaction ZS518, Serial Number Management, to reconcile the corresponding serial number system (ATTP) if the sample provided is serialized.
-

DOCUMENTATION OF THE SAMPLING EVENT

NALO QA or other designated Operations personnel in Enfield if QA is not on site, documents the sampling event which must include the following:

- Names of FDA, DEA (if applicable) and Lilly personnel involved,
- Dates, times and location of the event,
- Reason for the sampling event and the sampling method
- Documents issued and signed (i.e.: FDA Form 482, FDA Form 484 or other Sample Request paperwork, as applicable)
- Product information, including item code(s), batch(es) and quantity(ies) of items sampled by the regulatory agency,
- Quantity of duplicate samples pulled (if samples are of product in commerce),
- Identification of individual who received the sample (name and agency),
- Acknowledgement that the sample was received, and
- All additional information conveyed related to an investigator, the event itself and any actions taken.

NALO QA or other designated Operations personnel in Enfield if QA is not on site files a copy of the documentation in the NALO GMP Library in accordance with the Global Records Retention Schedule and ensures that any sampling event for product not yet released by the FDA for commerce is added to Trackwise 138.

RECORD RETENTION

NALO Operations/NALO Quality Assurance retains the following documentation in the NALO GMP Library in accordance with the Global Records Retention Schedule:

- FDA Form 482, or other Sample Request paperwork, as applicable.
 - Signed copy of the FDA Form 484, if applicable, or of the prepared sample receipt.
 - Signed copy of the Notification to Management written by the SQA of the appropriate plant (IDM, IDAP, EMSA), or by NALO Quality Management, as appropriate.
 - Documentation of the sampling event (above)
 - Completed/signed Finished Product Request Forms for each product sampled (unit cost noted on each form, see USD-SOP-Stock Withdrawal-001, Attachment A)
 - MB52 report for each item code requested, if appropriate
 - Any other pertinent documentation related to the sampling event (such as the Notice of FDA Action for each AWB/corresponding import entry number that was received for approval of the product to be released for commerce).
-

Document Approval Signatures

Approved Date: 12 Feb 2024

Approval Verdict: Approve	Don Moran (C027173@lilly.com) Approver 02-Feb-2024 17:12:37 GMT+0000
Approval Verdict: Approve	K. Nicole Harter (C042254@lilly.com) Quality Approver 12-Feb-2024 20:52:09 GMT+0000
Reviewer / Approver Additional Details	N/A